



CHAPTER 79.

An Act to provide for the modification of the law relating to the administration of justice in Scotland in the event of the outbreak or imminence of war and for purposes connected therewith. [1st September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Lord President of the Court of Session as regards that Court, and any statutory tribunal consisting of judges of that Court and the Lord Justice General as regards the High Court of Justiciary, may by order direct that the Court or tribunal shall sit at such place or places and on such dates or for such periods as may be specified in or appointed under the order.

Power to vary sittings of Court of Session, High Court of Justiciary and Sheriff Courts.

(2) Any such order may provide—

- (a) for the removal of any offices of or attached to or connected with the Court to which the order relates to such place or places as may be specified in the order; or
- (b) for the distribution of the business of any such office among local offices established by or under the order.

(3) The Secretary of State may direct that any sheriff shall sit at such place or places whether within

CH. 79. *Administration of Justice 2 & 3 GEO. 6.*
(Emergency Provisions) (Scotland) Act, 1939.

his sheriffdom or not and at such time or times as may be specified in the order, for the purpose of holding civil or criminal courts or both such courts.

General
provisions
as to orders.

2.—(1) Any order made under the foregoing section may be varied, supplemented or revoked, by a subsequent order made by the Lord President of the Court of Session, the Lord Justice General, or the Secretary of State, as the case may be.

(2) Any order made under the foregoing provisions of this Act may contain such provisions as appear to the Lord President of the Court of Session, the Lord Justice General, or the Secretary of State, as the case may be, to be necessary or expedient for giving effect to the order or any previous order so made, and may suspend or modify, and shall have effect notwithstanding, any provisions of any enactment, Act of Sederunt, or Act of Adjournal.

(3) For such period, as respects such area and subject to such conditions as may be specified in an authority given by the Lord President of the Court of Session, the Lord Justice General, or the Secretary of State under this subsection—

(a) any power of the Lord President of the Court of Session, or of the Lord Justice General may be exercised by a Lord of Session or a Lord Commissioner of Justiciary authorised in writing by the Lord President or the Lord Justice General for the purpose;

(b) any power of the Secretary of State under this Act may be exercised by any person authorised in writing by him for the purpose.

Number and
qualification
of jurors.

3.—(1) Notwithstanding anything in any enactment or in any rule of the common law, the number of jurors for the purpose of any trial or inquiry by a jury in any proceedings, whether civil or criminal, shall consist of seven persons of whom two shall be special jurors :

Provided that the foregoing provisions of this subsection shall not apply in relation to a trial in the High Court of Justiciary, if the Court on application made on behalf of the Lord Advocate or the accused, within ten days after the service of the indictment

thinks fit, by reason of the gravity of the matters in issue, to direct that those provisions shall not apply, and shall not in any case apply in relation to the trial of a person on a charge of treason or murder.

(2) A jury, which in pursuance of the last foregoing subsection, consists of seven persons, shall not be entitled to return a verdict by a majority, unless five of their number are in favour of such verdict.

(3) In relation to any case in which subsection (1) of this section requires that the jury shall consist of seven persons—

(a) the Jury Trials (Scotland) Act, 1815, shall have 55 Geo. 3.
 effect as if— c. 42.

(i) in section twenty, for the words “ thirty-six ” and “ fifty ” the words “ twenty ” and “ thirty ” were respectively substituted;

(ii) in section twenty-one, for the word “ four ” the word “ two ” were substituted;

(iii) in section twenty-three, for the word “ twelve ” the word “ seven ” were substituted;

(iv) in sections twenty-six and twenty-seven, for the word “ thirty-six ” the word “ twenty ” were substituted;

(v) in section twenty-nine, for the words “ six ” and “ twelve ” there were respectively substituted the words “ three ” and “ seven ”;

(b) the Jurors (Scotland) Act, 1825, shall have effect 6 Geo. 4.
 as if in section sixteen for the word “ five ” c. 22.
 wherever occurring the word “ two ” were substituted, and for the word “ two ” the word “ one ” were substituted;

(c) the Court of Session Act, 1868, shall have effect 31 & 32 Vict.
 as if in section forty-four, for the proportion of c. 100.
 one to two there were substituted the proportion of two to five;

(d) the Criminal Procedure (Scotland) Act, 1887, 50 & 51 Vict.
 shall have effect as if in section thirty-eight, c. 35.
 for the proportion of one to two the proportion of two to five were substituted, and for the word “ thirty ” the word “ twenty ” were substituted.

CH. 79. *Administration of Justice 2 & 3 GEO. 6.*
(Emergency Provisions) (Scotland) Act, 1939.

(4) Section one of the Juries (Scotland) Act, 1825 (which provides that liability to serve on a jury ceases at the age of sixty) shall have effect as if the words "sixty-five years" were substituted for the words "sixty years", and any enactment relating to the qualification of jurors and the manner of making up any roll or list of persons who are qualified and liable to serve as jurors shall apply accordingly.

Limitation
of trial by
jury.

7 Edw. 7.
c. 51.

4.—(1) Notwithstanding anything in any enactment no action in the Court of Session, whether originating in that Court or remitted thereto under section thirty of the Sheriff Courts (Scotland) Act, 1907, shall be tried by a jury unless the Court is of opinion that, in the special circumstances of the case, it ought to be so tried.

(2) The right conferred by section thirty-one of the Sheriff Courts (Scotland) Act, 1907, on a party to such an action in the sheriff court as is specified in the said section, to require the action to be tried before a jury, shall be suspended while this Act is in force, and no such action shall be so tried unless the sheriff is of opinion that it ought to be so tried.

58 & 59 Vict.
c. 36.
6 Edw. 7.
c. 35.

(3) No inquiry under the Fatal Accidents Inquiry (Scotland) Act, 1895, or the Fatal Accidents and Sudden Deaths Inquiry (Scotland) Act, 1906, shall be held with a jury unless the sheriff so directs, and the provisions of the said Acts regarding the procedure at such inquiries shall, in their application to any inquiry which is held without a jury, have effect subject to such modifications as are rendered necessary by the absence of a jury.

Liberation
on bail in
event of
appeal and
adjourn-
ment of
criminal
proceedings
for inquiry.
51 & 52 Vict.
c. 36.
8 Edw. 7.
c. 65.

5.—(1) Section seven of the Bail (Scotland) Act, 1888 (which entitles a person by whom bail has been found to liberation in certain circumstances in the event of an appeal by the Public Prosecutor), shall have effect as if for any period therein specified there were substituted a period of seven days.

(2) Section twenty-four of the Summary Jurisdiction (Scotland) Act, 1908, (which empowers a court of summary jurisdiction to continue a criminal case) shall have effect as if for the words "fourteen days" the words "twenty-one days" were substituted, and

as if the reference to special cause shown included a reference to circumstances arising out of the existence or imminence of a state of war.

6. In the event of the occurrence of a vacancy among the judges of the Court of Session it shall not be necessary to fill the vacancy unless the Secretary of State after consultation with the Lord President of the Court of Session advises His Majesty that the state of business requires that the vacancy should be filled.

Filling of vacancies in the Court of Session.

7.—(1) This Act shall come into operation on such date as His Majesty may by Order in Council appoint, being a date on which it appears to His Majesty, having regard to the outbreak or probability of war, that it is expedient that this Act should come into operation.

Commencement and duration.

(2) At any time after this Act has come into operation, His Majesty may by Order in Council declare that, subject to any temporary and transitional provisions contained in the Order, it is no longer necessary that this Act should continue in force, and at the end of the day on which such an Order is made this Act shall expire, except as respects things previously done or omitted to be done thereunder and subject to any such provisions.

8.—(1) This Act may be cited as the Administration of Justice (Emergency Provisions) (Scotland) Act, 1939, and shall extend to Scotland only.

Short title and extent.

Printed by EYRE AND SPOTTISWOODE LIMITED
FOR
SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament